

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

This is a local matter. Sri Mahboob Ahmad learned counsel for respondent no. 2 will file counter affidavit within a week indicating the period for which the electricity amount is due and payable by the petitioner.

Put up this matter on 8.4.2015.

Order Date :- 2.4.2015

SKS

(Amar Singh Chauhan, J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Put up this matter tomorrow i.e. 9.4.2015.

Order Date :- 8.4.2015

Puspendra

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Counter affidavit filed today is taken on record.

A week's time is allowed to the learned counsel for the petitioner to file rejoinder .

List thereafter.

Order Date :- 9.4.2015

MAA/-

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

The case is passed over on the illness slip of the learned counsel for the respondents.

Order Date :- 23.4.2015

MAA/-

(Amar Singh Chauhan,J.)

(Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

The case is passed over on the illness slip of learned counsel for the petitioner.

Order Date :- 14.5.2015

Puspendra

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

As prayed by Sri H.P.Dwivedi, the learned counsel for the petitioner, the case is passed over.

Order Date :- 28.5.2015

MAA/-

(Amar Singh Chauhan,J.)

(Tarun Agarwala,J.)

Court No. - 34

Case :- WRIT - C No. - 18089 of 2015

Petitioner :- Beni Madhav

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Harendra Prakash Dwivedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Heard learned counsel for petitioner and perused the record.
2. Recovery citation dated 03.03.2015 for recovering Rs. 1,10,039/- has been challenged and a mandamus has also been sought directing respondents to provide amended bill to petitioner without any surcharge as per order dated 03.02.1994 passed by District Consumer Forum.
3. Order of District Consumer Forum shows that demand pertains to unauthorized user/ theft of electrical energy. In such a case District Consumer Forum has no jurisdiction whatsoever for the reason that whenever assessment has been made on account of unauthorized user or theft of electrical energy, it cannot be said to be a case of service rendered by Department to the person committing such unauthorized user or theft, therefore, such matter is beyond the purview of Consumer Protection Act, 1986. Earlier it was governed by statutory regulations framed under Section 79 of Electricity Supply Act, 1948 and subsequently by Sections 126 and 127 of Electricity Act, 2003 read with Electricity Supply Code.
4. Moreover citation is only a consequential act and main assessment order is not before us neither it is under challenge. Therefore, also writ petition is thoroughly ill-drafted and misconceived.
5. Dismissed accordingly. Interim order, if any, stands vacated.

Order Date :- 11.10.2017

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